

- Case No.: EXP202300650

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complaining party), on December 16, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the complained party), regarding the installation of a video surveillance system located at ***ADDRESS.1, NAVA, ASTURIAS, with indications of a possible violation of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complaining party states that the complained party has installed, outside their home, two video surveillance cameras that, due to their location and orientation, are capable of capturing images of areas outside said home, specifically a common access area to the homes of the parties, as well as areas belonging to the homes of the complained party and their mother.

They provide images of the location of the cameras and the areas affected by the location of the cameras.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on January 27, 2023, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On March 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

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FOURTH: On April 18, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the complained party submitted a written statement in which, in summary, stated that: "That the reported cameras are SIMPLY FALSE and of a Deterrent nature, placed this way due to damages suffered on the property in the past and that at the time all parties of the private property where they are installed were in total agreement on their placement. The complaining party is a potential FUTURE heir of one of the homes located on the property, who has not even wanted to hold community meetings. It has been communicated to the complaining party (the potential Future heirs) in the community meetings held, this situation and they have ignored it. These FALSE cameras are pointing at the entrance of MY single-family home and at the entrance of MY garage and MY own vehicles, located on the facade of MY own home, not even being subject to say that they may have an intimidating character, since, even being FALSE, they point solely and exclusively at MY property. They also report the temperature and humidity sensor of the weather station that is installed in the window of MY own home, which is neither a surveillance camera nor anything similar. An invoice

(dated May 14, 2022), references, and photographs of the same are attached, including a video disassembling one of these FALSE security cameras. Therefore, no images are being recorded nor is anyone being intimidated at all."

SIXTH: On November 16, 2023, a resolution proposal was made, proposing to the Director of the Spanish Agency for Data Protection to sanction Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €300 (three hundred euros), and to order Mr. B.B.B. to, pursuant to Article 58.2.d) of the GDPR, within ten working days, prove that they have proceeded to remove the camera or video camera system from its current location or to reorient it, in such a way that the viewing of the images evidences that no space of the complaining party's home, common areas, or public thoroughfare is captured. Alternatively, prove that the two cameras referred to in the complaint are fictitious and are placed in the location shown in the images provided in the aforementioned complaint.

The resolution proposal was notified on December 1, 2023, and after the period granted for allegations, no allegations have been presented regarding said proposal.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: The claimant states that the respondent has installed, outside their home, two surveillance cameras that, due to their location and orientation, are capable of capturing images of areas outside said home, specifically a common access area to the homes of the parties, as well as private areas of the homes of the respondent and their mother.

The claimant provides images of the location of the cameras and the areas affected by the location of the cameras. What appears to be the back of the house.

SECOND: The respondent alleges that the reported cameras are fake, merely of a deterrent nature. That these fake cameras are pointing at the entrance of their single-family home and at the entrance of their garage and their own vehicles, and are located on the facade of their home. That, even if they are fake, they point solely and exclusively to their property. That the temperature and humidity sensor of the weather station installed in the window of their own home is not a surveillance camera or anything similar. That no images are being recorded.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the respondent regarding the initiation agreement, it is necessary to point out the following:

The two cameras reported in the complaint, as can be seen in the images provided by the claimant,

and which the respondent has been able to view when the complaint was communicated to them, are not on the facade of the house, but rather on what appears to be the back of it. On the wall where the windows with the two cameras are located, there is no door, neither for entering a home nor for any garage.

The respondent provides two videos. In the first, what appears to be the facade of the house is observed, with a terrace and stairs, where they state the cameras they claim are fictitious are located. In the second video, they show how they dismantle a fake camera placed in the corner of a window. This latter video may correspond to the images in the complaint, due to the space observed around it. In light of the above, and by virtue of the principle of the presumption of innocence, the allegations presented by the respondent are accepted.

III

Presumption of Innocence

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning order and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi*, in its various manifestations, is conditioned on the play of evidence and on a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning order and must be respected in the imposition of any sanction, whether criminal or administrative (TC 13/1981), as the exercise of the sanctioning right, in any of its manifestations, is conditioned on the play of evidence and on a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TC Auto 3-12-81).

IV

Conclusion

In accordance with the above, it has not been proven that the common access area to the homes of the parties, as well as the private areas of the homes of the respondent and their mother, is being recorded.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: ORDER the FILE of the present procedure, as no administrative infringement has been established under the current regulations on data protection.

SECOND: NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

938-21112023
Mar España Martí

Director of the Spanish Agency for Data Protection

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